

1 IN THE DISTRICT COURT OF JOHNSON COUNTY, KANSAS
2 CRIMINAL DEPARTMENT

3
4 STATE OF KANSAS,

5 Plaintiff,

6 vs.

Case No. 10CR2633

Appellate No.: 13-109787-A

7 SCOTT P. MOORE,

8 Defendant.

9
10 TRANSCRIPT OF JURY TRIAL PROCEEDINGS
11 (Day 1, Volume I)

12 PROCEEDINGS HAD before the HONORABLE BRENDA CAMERON,
13 Judge of Court 13 of the Tenth Judicial District of the State
14 of Kansas at Olathe, Kansas, and a jury of six, January 14th
15 through 16th, 2013.

16 APPEARANCES:

17 The Plaintiff appeared by Ms. Erika Rasmussen and Ms.
18 Heather Jones, Assistant District Attorneys, Office of the
19 District Attorney, Johnson County Courthouse, 100 N. Kansas
20 Avenue, Olathe, Kansas.

21 The Defendant appeared in person and by Mr. Kevin E. J.
22 Regan from The Regan Law Firm, 1821 Wyandotte, Suite 200,
23 Kansas City, Missouri.

24
25 REPORTED BY GLORIA J. O'MALLEY, CSR, CCR

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1 * * * * * P R O C E E D I N G S * * * * *

2 THE COURT: The Court calls State of Kansas
3 versus Scott Moore, 10CR2633.

4 MS. RASMUSSEN: May it please the Court,
5 the State of Kansas appears by Erika Rasmussen and Heather
6 Jones.

7 MR. REGAN: Good morning, Your Honor, and
8 Counsel, may it please the Court, Mr. Moore appears in person
9 with counsel, Kevin Regan.

10 THE COURT: We're here outside the presence
11 of the jury, and the jury is now here, the pool is here. And,
12 Mr. Regan, I believe you wanted to take up a matter outside
13 the presence of the jury before we got started; is that
14 correct?

15 MR. REGAN: Yes, Judge. Thank you for
16 taking this up.

17 Judge just out of an abundance of caution, I'd like to
18 renew my objection to the State's proffered 60-455 evidence
19 for the reasons that have been previously placed on the
20 record. And I'd ask that my objection be noted as continuing
21 throughout the trial in this case. I felt that it would be
22 important to get it noted because it will probably be
23 mentioned by the State in voir dire, and by that occurring I'm
24 going to be forced to bring it up to protect my client's
25 interests. I'd ask that you note that, please. And also note

1 my renewal of my motion for reconsideration and ask the Court
2 to reconsider its ruling allowing the two proffered bits of
3 testimony about incidents taking place in Linn County in 2005
4 and 2006.

5 THE COURT: Your objection is noted, and
6 you made a good record previously to your opposition. It has
7 been ruled upon. Your objection will be noted and will be
8 continuing.

9 MR. REGAN: All right.

10 THE COURT: Are there any other preliminary
11 matters before we get started?

12 MS. RASMUSSEN: Nothing at this time. I
13 did briefly mention Mr. Regan -- there was a polygraph taken
14 by the defendant back in 2006. I think we're in agreement
15 that Mr. Regan doesn't plan to bring that up as it is
16 inadmissible.

17 The only other issue is crimes relating to anything other
18 than dishonesty. It's the State's position that that should
19 not be admitted. Mr. Regan has indicated that he believes
20 some of that will go to bias of the victim in this case. But
21 it is the State's position that evidence of specific instances
22 of misconduct should not be allowed. If there were a way to
23 vaguely address that the victim had been in trouble previously
24 and this led to allegedly a disagreement between the defendant
25 and the victim, which is what Mr. Regan plans to present, I

1 would understand that. But as far as the specifics of the
2 misconduct, it doesn't relate to truth or veracity. So as far
3 as the specifics of it, the State is opposed to any of that
4 coming in.

5 THE COURT: Mr. Regan, any comment?

6 MR. REGAN: Judge, I agree with counsel,
7 the general premise in Kansas is that I'm not allowed to go
8 into convictions other than those that go to truth and
9 veracity.

10 However, I have evidence from at least two witnesses,
11 maybe more, that there was a discussion on the evening in
12 question on the May 15th incident, which is Count II in this
13 case, that the complaining witness as to Counts I and II, Nick
14 Cook, admitted to my client and some other folks in the car
15 when they were going from dinner to a movie, from the movie to
16 the home that he had been selling drugs at school. My client
17 told him that he was disappointed in him for doing that, and
18 that he should know better, and that he should get his life in
19 order and quit engaging in that activity. And that following
20 my client's admonishment that Nick Cook became resentful
21 towards my client, hostile toward him, and I think it goes
22 towards his bias and to his credibility. But more importantly
23 for my purposes, it's bias towards my client.

24 THE COURT: It is not a crime of dishonesty
25 under the statute, and the only way I think that comes in is

1 through your client, I would imagine. I think it can come in,
2 as Ms. Rasmussen suggests, as sort of a vague reference to him
3 getting in trouble, and your client addressing that. We can
4 take that up. If your client takes the stand, we can take it
5 up prior to that. Because I would imagine that's how you
6 would get that in. You can raise that again.

7 MR. REGAN: There were other people that
8 heard the whole conversation. There was Sue Moore, my
9 client's wife; Preston Moore, my client's son; Marcus
10 Blanckensee, a third party that was a mutual friend of the
11 complainant, and Preston Moore.

12 THE COURT: We can take that up prior to
13 that testimony. I'm going to ask that during voir dire you
14 not mention that. You can refer to there being a
15 conversation, your client admonishing him about being in
16 trouble, but not specifically as to the sale of drugs.

17 MR. REGAN: And another point of
18 credibility, I believe the complainant in his Sunflower House
19 interview said he was doing well in school when, in fact, he
20 wasn't. That's a blatant lie. He was suspended from school
21 and kicked off the wrestling team because of this drug
22 incident. And I guess I will take it up with you at the
23 appropriate time. I don't intend on mentioning it in voir
24 dire or in my opening. So before we put Preston Moore on, I
25 would suppose we should talk with you.

1 THE COURT: You will be allowed to
2 cross-examine him about anything to discredit something he
3 said in the Sunflower House. If he's not doing well in school
4 and he said -- I'd like to know a time frame too. As this
5 isn't something he was suspended two years ago or something,
6 that it's a current problem, he's having current problems in
7 school, then I think you can cross-examine him.

8 MR. REGAN: It was current as of May 2010,
9 from what I've been told.

10 MS. RASMUSSEN: He was interviewed at the
11 end of May of 2010. I believe the incident that Mr. Regan is
12 talking about may have occurred sometime in early April.

13 THE COURT: You can cross-examine about
14 that, and you can also bring it up again when the time comes
15 if need be, Counsel. Okay. Anything else.

16 MS. JONES: Related to the issue of the
17 polygraph, the polygraph examiner that did this polygraph back
18 in 2006 was associated at the time, and still is, with the
19 Kansas City, Missouri Police Department. He is their "go to"
20 polygraph examiner. I'm just concerned that there's going to
21 be, you know, Mr. Regan said some statement about the fact
22 that he was exonerated, quote, unquote, "exonerated" by a
23 Kansas City, Missouri police officer. I don't think that that
24 is appropriate, that type of language to use that. Because
25 then we're essentially trying to get in the back door what we

1 can't get in through the front door.

2 THE COURT: This polygraph was about this
3 incident, this victim?

4 MR. REGAN: It is about the 60-455
5 evidence, Judge.

6 MS. JONES: So it doesn't have anything to
7 do with this victim.

8 THE COURT: Mr. Regan, you're not
9 anticipating bringing that in; correct?

10 MR. REGAN: Correct. In light of the
11 unusual way the State is going to get to put some -- they are
12 going to be allowed to put in evidence of two alleged
13 incidents. One was investigated internally by the church, and
14 the church found nothing wrong that occurred. In fact, I
15 believe the parents of the complainant apologized to my client
16 for how things turned out.

17 The second set of events, there was some further
18 investigation. I don't believe there was anything found to
19 have occurred by the church. Those two allegations were
20 presented to the Linn County Prosecutor's Office, and he saw
21 fit not to file on either of them. That's the 60-455 that's
22 coming in.

23 What I'd like to be able to do is ask whoever they put on
24 to talk about that evidence from law enforcement to say: Are
25 you aware that my client did submit to a statement to

1 Investigator Perlock. I know I can't get into the polygraph
2 stuff, and that became part of the case file, and the
3 prosecutor decided not to file the charges.

4 MS. JONES: Perlock is the polygraph
5 examiner.

6 MR. REGAN: I'm not going to identify him
7 as the polygraph examiner.

8 THE COURT: No mention will be made of the
9 polygraph exam. No mention will be made that he was
10 exonerated by this officer.

11 MR. REGAN: I will not say "exonerated."

12 THE COURT: But you can ask questions he
13 was not charged in that case. Are we clear on that?

14 MS. RASMUSSEN: Yes.

15 MS. JONES: Yes.

16 MR. REGAN: Judge, can I ask you some
17 questions off the record?

18 THE COURT: Yes.

19 (Whereupon, the Court took a short recess
20 and proceedings resumed at 9:03 a.m.)

21 THE COURT: The Court will call for the
22 record State of Kansas versus Scott Moore, 10CR2633.

23 MS. RASMUSSEN: May it please the Court,
24 the State of Kansas appears by Erika Rasmussen and Heather
25 Jones.

1 MR. REGAN: Good morning, Your Honor, good
2 morning, Counsel, and ladies and gentlemen of the jury. May
3 it please the Court, Scott Moore appears in person with
4 counsel, Kevin Regan, and we are ready for trial.

5 THE COURT: Would all persons summoned as
6 jurors please rise and raise your right hands and take an oath
7 or affirmation to truly answer the questions concerning your
8 qualifications as jurors.

9 (Whereupon, the prospective jury panel was
10 duly sworn.)

11 THE COURT: Thank you, please be seated.

12 Good morning again, ladies and gentlemen. I am Brenda
13 Cameron. I sincerely appreciate your attendance to serve as
14 jurors in this court. I believe your orientation covered
15 generally your duties and what to expect. However, I will now
16 further instruct you as to the procedures in this particular
17 matter now pending before the Court.

18 First, I would like to introduce the court personnel.
19 The Court's official court reporter is Ms. Gloria O'Malley who
20 I introduced you to just earlier here today. She will record
21 verbatim statements and evidence presented in the court. She
22 will also administer oaths and act as clerk of the court.

23 Ms. Elizabeth Nelson, who you already met also, is the
24 Court's official bailiff and administrative assistant. She is
25 the official liaison between the jury panel and this court.

1 Upon completion of the evidence, the panel will be placed
2 in her charge. She will also assist you in any way possible.
3 Should you have any personal problems or matters that arise
4 during the pendency of this case, please do not hesitate to
5 contact her.

6 Would the bailiff please draw the names of prospective
7 jurors. When your name is called, please be seated in the
8 places indicated by Ms. Nelson.

9 (Whereupon, the following names were called
10 to come forward: Jennifer Reynolds, John Schulto, Ethan
11 Helfand, Chad Porter, Sandra Beckemeier, William Dewey, Sylvia
12 Chatterton, Cheryl Kretchmer, Larry Gadberry, Marcy
13 Brockmeier, Ryan Schmidgall, Casey Hentchel.)

14 THE COURT: The matter pending before this
15 Court is a criminal case in which the State of Kansas is
16 represented by Erika Rasmussen and Heather Jones. The
17 defendant is Scott P. Moore. He is represented by Kevin
18 Regan.

19 The defendant is charged with the following: Count I,
20 that on or about the 15th day of May 2010 in the City of
21 Overland Park, County of Johnson, State of Kansas, Scott P.
22 Moore did then and there unlawfully, willfully and
23 intentionally touch the person of another who was sixteen or
24 more years of age, to wit: NMK, whose date of birth is 1993,
25 who did not consent to such touching, who was not the spouse

1 of Scott P. Moore with the intent to arouse the offender's and
2 or another's sexual desires.

3 Count II, further, that on or between the first day of
4 December 2009, and the 31st day of December, 2009, in the City
5 of Overland Park, County of Johnson, State of Kansas, Scott P.
6 Moore did then and there unlawfully, willfully and
7 intentionally touch the person of another who was sixteen or
8 more years of age, to wit: NMK, date of birth, 1993, who was
9 not the spouse of Scott P. Moore and did not consent thereto
10 with the intent to arouse the offender's and/or another's
11 sexual desires.

12 The defendant has pled not guilty.

13 At this time, we will proceed with what is called voir
14 dire examination. The procedure is designed to obtain a fair
15 and impartial jury and not to pry into your personal affairs.

16 The Court and the attorneys will ask you questions to
17 discover if you have any knowledge of the case, have any
18 preconceived opinion which you cannot lay aside, or if you
19 have any experience in your personal or family lives that
20 might cause you to identify yourself with either party.

21 At this time I will commence voir dire examination by
22 asking the jury panel as a whole general questions. I will
23 ask that you hold up your hand if the answer is yes. The
24 Court and attorneys might inquire further. Please raise your
25 right hand and answer yes or no so Ms. O'Malley can take it

1 all down. Pay attention if you are not called up here and you
2 may be called up later if we have to excuse anyone. You in
3 the back there are not quite safe yet, so please pay
4 attention.

5 First of all, has anyone moved outside of Johnson County,
6 Kansas?

7 Do any of you know anything about this case either
8 through your own personal knowledge or by discussing it with
9 anyone else or by reading or hearing about it in the news
10 media?

11 The defendant is Scott P. Moore. Are any of you related
12 by blood or marriage to the defendant or know him from any
13 business or social relationship?

14 Counsel representing the State is Erika Rasmussen and
15 Heather Jones. Are any of you related by blood or marriage to
16 counsel for the State or know them through any business or
17 social relationship?

18 Counsel representing the defendant is Kevin Regan. Are
19 any of you related by blood or marriage to counsel for the
20 defendant, or do you know him from any business or social
21 relationship?

22 I will now read you the names of those who may possibly
23 testify in this case. I will read their names slowly. I ask
24 you that if you know anybody in any capacity, that you advise
25 the Court and raise your hand and advise the Court of that.

1 Nicholas Koch, K-O-C-H; Lori Koch, also K-O-C-H; Officer
2 Beatty, B-E-A-T-T-Y; Marcus Blanckensee,
3 B-L-A-N-C-K-E-N-S-E-E; Detective Fizer, F-I-Z-E-R; Sarah
4 Byall, B-Y-A-L-L; Darick Chapman, C-H-A-P-M-A-N; Collin
5 Williams; Tommy Chaney; Bret Kingcade; Ben Gooding; Kyle
6 Heslop, H-E-S-L-O-P, Jordan Galbraith, G-A-L-B-R-A-I-T-H.

7 Do any of you have any physical defects such as hearing,
8 sight or otherwise which would render you incapable of
9 performing your duty as a juror in this case? Do any of you
10 have any bias or prejudice either for or against the defendant
11 or the State? Thank you.

12 At this time, we will now have the respective parties ask
13 you questions on voir dire. We will commence with the
14 attorneys for the State, and after which the attorney for the
15 defendant may inquire. Ms. Rasmussen.

16 MS. RASMUSSEN: May it please the Court,
17 Counsel, members of the jury, good morning. How is everyone
18 doing? Okay. You've got to talk. This is the only chance
19 that you get to talk, and I get to talk to you. So you've got
20 to do me a favor and talk up this morning and keep me
21 entertained.

22 I will tell you a little bit about myself. My name is
23 Erika Rasmussen. This is Heather Jones. We are both
24 assistant district attorneys in the DA's Office, and we work
25 for the DA, Steve Howe.

1 The first thing I'm going to ask you, does anyone have
2 any close association with the DA's Office or know the
3 district attorney Steve Howe personally? I see no hands. And
4 when I say, "I see no hands," is so Ms. O'Malley is typing
5 down everything, and she can't type down silence. So it gets
6 rather annoying for me to say, "I see no hands," so I
7 apologize for that in advance.

8 So voir dire, what is it? We're here to pick a fair and
9 impartial jury today. They call it jury selection, but it's
10 actually jury deselection. To give you a little example, my
11 mom is a professional juror. She has served on four juries in
12 her life.

13 After I became a lawyer, after her third time on jury
14 duty she said, "What do I do to get off jury duty? I don't
15 want to be picked as a juror anymore. Please give me some
16 pointers." When I was asking her about her jury experience,
17 she said, "Yeah, I don't talk a whole lot because I really
18 don't have a lot of strong opinions," which I didn't inherit
19 from my mother. She's a very quiet, pleasant person, school
20 teacher, always, always smiles. And I said, "Mom, you've got
21 to start talking." Because the fact of the matter is that at
22 the end of this process, Mr. Regan and I will each sit down
23 and deselect people to serve as jurors. The quiet ones always
24 get picked. So I am begging you to talk this morning. We do
25 this because we want a fair and impartial jury.

1 Mr. Moore has every right to have a jury that has no
2 preconceived notions or biases about this case prior to the
3 trial beginning, prior to your time at deliberations.

4 To give you an example of this, when I was in college, my
5 car was broken into. I was between the dorms and an
6 apartment. So I was homeless for about a week, and I was
7 living at a friend's apartment. But all of my belongings, all
8 of my most important belongings, including my 200 CD case,
9 which was filled with terrible pop music, all of those items
10 were stolen out of my car. To this day, I am still mad about
11 it. I am still very bitter that they never caught the person.
12 Would you all agree that I probably would not make a very good
13 juror on a car burglary case? I'm seeing nods. You wouldn't
14 want me judging you if that was the charge.

15 So we do this process to find out things about you to see
16 if you would be an appropriate juror. If you don't get
17 picked, it's nothing personal. I'm sure you are all great
18 people, but you may not be best to serve on this jury.

19 We're going to ask you the catch-all question at the end.
20 So if I haven't asked you everything that you can imagine by
21 the end of this process, and you're thinking there's something
22 that either Erika or Mr. Regan might want to know about me and
23 my fitness to serve on this jury, at the end I encourage you
24 to speak up.

25 Also, this is the only chance I get to talk to you.

1 Ms. Jones and I, if you're selected to serve on this jury,
2 after you are sworn in will do everything we can to avoid you.

3 If we see you in the hallways, we will duck and run. If
4 we see you on the elevator, we will take the stairs. Trust
5 me, I would rather take the elevator, but it would be improper
6 for us to discuss the case, to even be friendly to you. So we
7 aren't trying to hide from you. We'd be happy to talk to you,
8 and after this case is all over, we certainly can.

9 All right. So who here is excited about jury duty?
10 Anyone kind of looking forward to it? I see no -- okay. All
11 right. Ms. Kretchmer, am I saying your name right?

12 VENIREPERSON KRETCHMER: Yes.

13 MS. RASMUSSEN: You're kind of excited?

14 VENIREPERSON KRETCHMER: I'm interested.

15 MS. RASMUSSEN: Mr. Schulte, you are
16 interested too?

17 VENIREPERSON SCHULTE: I'm curious.

18 MS. RASMUSSEN: Actually, Ms. Kretchmer,
19 you've been on a jury before, haven't you?

20 VENIREPERSON KRETCHMER: One.

21 MS. RASMUSSEN: Okay. We'll get to that in
22 a minute. Ms. Kretchmer, since you have been a juror before,
23 would you agree with me that legal shows are not like trials?

24 VENIREPERSON KRETCHMER: Yes.

25 MS. RASMUSSEN: They are not wrapped up in

1 one hour. In fact, this case, as you heard from the
2 complaint, is alleged to have occurred back in 2009 and 2010.
3 The wheels of justice turn very slowly.

4 Does anyone here think that this case is less important
5 just because it happened quite some time ago? I see no hands.

6 Now, I've established today is not going to be like *Law*
7 *and Order*. Tomorrow is not going to be like it either. It's
8 not going to be nonstop excitement. But there are things on
9 TV that you will see here, and those are some constitutional
10 principles. The defendant here has no obligations, only
11 rights. He's presumed to be innocent.

12 So I am going to pick on you for a second, Mr. Schulte.
13 If we were to mark the complaint that the State just read to
14 you as an exhibit, admitted into evidence, and sent you into
15 the back room to deliberate with that piece of paper, would
16 the defendant be guilty or not guilty?

17 VENIREPERSON SCHULTE: I would guess not
18 guilty.

19 MS. RASMUSSEN: All right. He's presumed
20 to be innocent. And that piece of paper has no evidentiary
21 value. You all agree that that is something you can start out
22 with, he's innocent. And I'm seeing a hand there, and I'm
23 going to mess up your name. Is that Mr. Schmidgall?

24 VENIREPERSON SCHMIDGALL: Yes.

25 MS. RASMUSSEN: I see your hand. Do you

1 have concerns about that, or can you do that, presume him to
2 be innocent?

3 VENIREPERSON SCHMIDGALL: Yeah, I can do
4 that.

5 MS. RASMUSSEN: Was there anyone here when
6 they walked in and found out that this was a criminal case
7 thought: What did he do? Anyone? I see no hands to that.
8 No one thought that? I see Mr. Gadberry. And you were
9 actually a public defender investigator?

10 VENIREPERSON GADBERRY: That's correct.

11 MS. RASMUSSEN: So you're familiar with the
12 legal process?

13 VENIREPERSON GADBERRY: Correct.

14 MS. RASMUSSEN: But you walked in today and
15 kind of thought: He must have done something?

16 VENIREPERSON GADBERRY: Not necessarily,
17 but --

18 MS. RASMUSSEN: Okay. Based upon your
19 experience with the criminal justice system, do you think
20 you'd be able to be fair and impartial in this case?

21 VENIREPERSON GADBERRY: I hope so.

22 MS. RASMUSSEN: You say you hope so.

23 VENIREPERSON GADBERRY: I spent many years
24 with the Public Defender's Office, and I spent many years as a
25 law enforcement officer.

1 MS. RASMUSSEN: So you were a law
2 enforcement officer prior to working at the Public Defender's
3 Office?

4 VENIREPERSON GADBERRY: Correct.

5 MS. RASMUSSEN: So you've kind of seen both
6 sides of the fence?

7 VENIREPERSON GADBERRY: Right.

8 MS. RASMUSSEN: The defendant also has a
9 right to subpoena witnesses. He doesn't have to. He actually
10 can sit there and read the paper and do nothing throughout
11 this trial, and you can't hold it against him. He doesn't
12 have to testify. Is there anyone here that wants to hear from
13 the defendant?

14 MR. REGAN: Judge, may we approach, please?

15 THE COURT: Yes.

16 (Whereupon, the following proceedings were
17 held at the bench outside of the presence of the jury.)

18 MR. REGAN: Judge, I believe it's
19 inappropriate for the prosecution to inquire about my client's
20 right to testify or not to testify, drawing attention to that
21 topic, so I object to that line of inquiry.

22 THE COURT: That will be sustained. She
23 has talked about he has a right not to, but don't ask, "Do you
24 want to hear from him."

25 MR. REGAN: I respectfully request a

1 mistrial.

2 MS. RASMUSSEN: This is not a basis for a
3 mistrial. This is something that is often brought up. I
4 wasn't going into it in depth. I was just trying to get a
5 feeling of: Do you want to hear from him. He's got his
6 absolute right.

7 THE COURT: I'm not going to sustain the
8 motion for mistrial. But you cannot ask whether they want to
9 hear from him.

10 MS. RASMUSSEN: Okay.

11 (Whereupon, the following proceedings were
12 held away from the bench in the presence of the jury.)

13 MS. RASMUSSEN: Okay. The State in this
14 case has all the obligations, and we're going to talk about
15 something called the burden of proof. It's the State's duty
16 to prove guilt beyond a reasonable doubt. It's a burden we
17 gladly accept. Fortunately, or unfortunately, we cannot
18 define it for you. It's something that you all have to go
19 back in the jury room and talk about, and determine what the
20 definition of beyond a reasonable doubt is.

21 Is there anyone here who believes that beyond a
22 reasonable doubt is beyond all doubt? I see no hands. I see
23 Ms. Brockmeier is kind of making some faces.

24 VENIREPERSON BROCKMEIER: I've never really
25 thought about it before.

1 MS. RASMUSSEN: Okay.

2 VENIREPERSON BROCKMEIER: That's why I'm

3 like, oh, that's a different way of thinking about it.

4 MS. RASMUSSEN: Does anyone here think it

5 means beyond all doubt? I see no hands.

6 Now that I see that A few of you have been on jury duty

7 before, and so you've had the chance to go back and work with

8 some of these legal definitions. I'm going to start with the

9 back row, and I see that Mr. Dewey and Ms. Brockmeier, you

10 have both served on a jury before?

11 MS. RASMUSSEN: Mr. Dewey, you have not?

12 VENIREPERSON DEWEY: No.

13 MS. RASMUSSEN: I'm sorry. We look at

14 those forms that you guys filled out months and months ago,

15 and I might have just got my notes confused.

16 VENIREPERSON DEWEY: I was called, but I

17 was dismissed. I didn't actually serve.

18 MS. RASMUSSEN: You spent a day out here

19 for nothing.

20 VENIREPERSON DEWEY: That's true.

21 MS. RASMUSSEN: All right. Ms. Brockmeier,

22 I'm going to start with you then for a second. That was a

23 criminal jury you served on?

24 VENIREPERSON BROCKMEIER: Yes.

25 MS. RASMUSSEN: Without going into what the

1 verdict was, were you able to reach a verdict?
2 VENIREPERSON BROCKMEIER: Yes.
3 MS. RASMUSSEN: Were you the foreperson of
4 that jury?
5 VENIREPERSON BROCKMEIER: No.
6 MS. RASMUSSEN: Was it a good experience,
7 or are you still mad about it?
8 VENIREPERSON BROCKMEIER: It was good. It
9 was different than I thought it was but still good.
10 MS. RASMUSSEN: Are you willing to serve
11 again?
12 VENIREPERSON BROCKMEIER: Yes.
13 MS. RASMUSSEN: All right. Going to the
14 front row, I think the only person that served on a jury
15 before would be Ms. Kretchmer?
16 VENIREPERSON KRETCHMER: Yes.
17 MS. RASMUSSEN: That was also a criminal
18 jury?
19 VENIREPERSON KRETCHMER: Yes.
20 MS. RASMUSSEN: A good experience?
21 VENIREPERSON KRETCHMER: Interesting. It
22 was fine.
23 MS. RASMUSSEN: Without going into what it
24 was, were you able to reach a verdict?
25 VENIREPERSON KRETCHMER: Yes.

1 MS. RASMUSSEN: Were you the foreperson of
2 that jury?

3 VENIREPERSON KRETCHMER: No.

4 MS. RASMUSSEN: Since it was interesting,
5 would you be willing to serve again?

6 VENIREPERSON KRETCHMER: Yes.

7 MS. RASMUSSEN: When you all go back there,
8 you will get instructions that guide you, if selected on this
9 jury, that includes what the State must prove. You've got to
10 agree to follow the law. Whether you like it or not, you have
11 to follow the law. Do we all here agree that we can do that?
12 I'm seeing lots of head nods. Does anyone think they will not
13 be able to do that? I see no hands.

14 MS. RASMUSSEN: Okay. This is the part
15 where it gets a little bit uncomfortable, but it's kind of the
16 purple elephant in the room. It can't be avoided.

17 You've heard what the charges are in this case, and I'm
18 going to ask you a few questions related to the type of charge
19 that we're here on today. If there is anything you are
20 uncomfortable with, let us know, and we can approach the Judge
21 and discuss it with her privately. But has anyone, you know,
22 either yourself or someone close to you, been a victim of a
23 crime of sexual violence? I see no hands. Okay.

24 Anyone, yourself, or you know someone close to you that
25 has been accused or prosecuted for sexual abuse? Okay. Ms.